

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No. _____

Purchased _____

-----X
 TALEPMA COLBOURNE, KENNETH WHITE,
 NAOMI FIGUEROA, T.C., by his natural mother and
 legal guardian, TALEPMA COLBOURNE, V.C., by
 his natural mother and legal guardian, TALEPMA
 COLBOURNE, and Z.C., by his natural mother and
 legal guardian, TALEPMA COLBOURNE,

Plaintiffs designate

Bronx County as the place of trial

The basis of the venue is where the
 tort arose and where plaintiffs reside

SUMMONS

Plaintiffs,

-against-

Plaintiffs reside at

THE CITY OF NEW YORK, CITY OF NEW YORK
 POLICE OFFICERS AND DETECTIVES WHOM
 ENTERED CLAIMANTS' APARTMENT AT 993
 UNION AVENUE, BRONX, NEW YORK ON JULY
 15, 2016 WHOSE NAMES ARE NOT KNOWN AT
 THIS TIME N/H/A JOHN/JANE DOE I-X, AS IT
 PERTAINS TO THE INCIDENT THAT AROSE ON
 JULY 15, 2016,

TALEPMA COLBOURNE
 993 Union Avenue
 Bronx, New York 10459

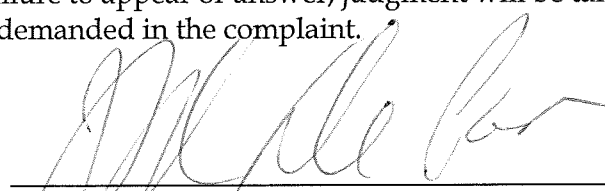
See Addendum

Defendants.

-----X
 TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
 action and to serve a copy of your answer, or if the complaint is not served with this
 summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
 after the service of this summons, exclusive of the day of service (or within 30 days after
 the service is complete if this summons is not personally delivered to you within the State
 of New York); and in case of your failure to appear or answer, judgment will be taken
 against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
 October 3, 2017


 JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: JOHN R. DEPAOLA

Attorneys for Plaintiffs

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

POLICE OFFICERS AND DETECTIVES

WHOM ENTERED PLAINTIFFS' APARTMENT

ON JULY 15, 2016 N/H/A JOHN/JANE DOE I-X,

AS THEIR TRUE NAMES ARE UNKNOWN AT THIS TIME

ADDENDUM

KENNETH WHITE
993 Union Avenue
Bronx, New York 10459

NAOMI FIGUEROA
1378 Teller Avenue
Bronx, New York 10456

T.C., by his natural mother and legal guardian,
TALEPMA COLBOURNE
993 Union Avenue
Bronx, New York 10459

V.C., by his natural mother and legal guardian,
TALEPMA COLBOURNE
993 Union Avenue
Bronx, New York 10459

Z.C., by his natural mother and legal guardian,
TALEPMA COLBOURNE
993 Union Avenue
Bronx, New York 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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TALEPMA COLBOURNE, KENNETH WHITE,
NAOMI FIGUEROA, T.C., by his natural mother and
legal guardian, TALEPMA COLBOURNE, V.C., by
his natural mother and legal guardian, TALEPMA
COLBOURNE, and Z.C., by his natural mother and
legal guardian, TALEPMA COLBOURNE,

VERIFIED COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, CITY OF NEW YORK
POLICE OFFICERS AND DETECTIVES WHOM
ENTERED CLAIMANTS' APARTMENT AT 993
UNION AVENUE, BRONX, NEW YORK ON JULY
15, 2016 WHOSE NAMES ARE NOT KNOWN AT
THIS TIME N/H/A JOHN/JANE DOE I-X, AS IT
PERTAINS TO THE INCIDENT THAT AROSE ON
JULY 15, 2016,

Defendants.

-----X

TALEPMA COLBOURNE, KENNETH WHITE, NAOMI FIGUEROA, T.C., by his
natural mother and legal guardian, TALEPMA COLBOURNE, V.C., by his natural
mother and legal guardian, TALEPMA COLBOURNE, and Z.C., by his natural mother
and legal guardian, TALEPMA COLBOURNE, by their attorneys, JOHN R. DEPAOLA &
ASSOCIATES PLLC, respectfully alleges as follows:

1. At all times mentioned, Plaintiffs TALEPMA COLBOURNE, KENNETH
WHITE, NAOMI FIGUEROA, T.C., by his natural mother and legal
guardian, TALEPMA COLBOURNE, V.C., by his natural mother and legal
guardian, TALEPMA COLBOURNE, and Z.C., by his natural mother and
legal guardian, TALEPMA COLBOURNE were residents of Bronx County,
City and State of New York.

2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 7th day of October 2016 and within ninety (90) days after the claims herein arose, the Plaintiffs each served their respective Notice of Claims in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by delivering a copy of each Notice of Claim in duplicate to the officer designated to receive such process personally, which each Notice of Claim advised the Defendant **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. Each of the Plaintiffs have complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS**

TIME N/H/A JOHN/JANE DOE I-X, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

AS AND FOR A FIRST CAUSE OF ACTION

7. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **TALEPMA COLBOURNE**, in an excessive manner about her person, causing her physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff **TALEPMA COLBOURNE** repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-**

X, jointly and severally did place Plaintiff **TALEPMA COLBOURNE** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff, **TALEPMA COLBOURNE** in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff, **TALEPMA COLBOURNE**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-** X, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, **TALEPMA COLBOURNE**, restrained her and her liberty and then took her into custody to a police station in the County of the Bronx. The Plaintiff was thereafter held in custody over the course of approximately six (6) hours until she was released. The Defendants intentionally confined the Plaintiff, **TALEPMA COLBOURNE**, without her consent and the confinement was

not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff, **TALEPMA COLBOURNE**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, **TALEPMA COLBOURNE**, restrained her and her liberty and then took her into custody and causing her to be incarcerated as a detainee in the City of New York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately six (6) hours before she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official

capacity)

14. Plaintiff, **TALEPMA COLBOURNE**, incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Defendants **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
16. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
17. Plaintiff, **TALEPMA COLBOURNE**, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
18. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
19. On or about July 15, 2016, the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, armed police, while effectuating the seizure of the

Plaintiff, TALEPMA COLBOURNE, did search, seize, assault and commit a batteries including being handcuffed and grabbed without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and her apartment and self were subjected to smoke coming into the apartment, a robot (droid) was thrown into the apartment armed police who pointed firearms at the Plaintiff, the Plaintiff while nine (9) months pregnant was grabbed by both arms and her back. She was searched, handcuffed without a warrant and brought to the 42nd PCT. While handcuffed, she was first brought from the apartment to a van where she remained for approximately two (2) hours in a van with her children who were also handcuffed. After the two (2) hours in the van, she was back to the 42nd PCT in the Bronx for approximately three (3) hours where she was interrogated. When she asked if she was free to leave and told yes, she left with her children and husband Kenneth White and walked back to 993 Union Avenue, Apt. 19, Bronx, New York. Please note that when Plaintiff went back to the apartment, it was ransacked and there was damage to the front door, windows, walls and personal property.

20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to her person;
 - b. Freedom from battery to her person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;

- e. Freedom from the use of excessive force during the arrest process;
 - f. Freedom from unlawful imprisonment;
 - g. Freedom from loss of her liberty.
 - h. Freedom from damage to personal property.
21. The Defendants subjected the Plaintiff, **TALEPMA COLBOURNE**, to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
22. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

23. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "22" with full force and effect as though set forth at length herein.
24. Defendant **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause, and if probable cause is lacking a plaintiff such as here, should not be taken in handcuffs from her home to a police station and held against her will.

25. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff, **TALEPMA COLBOURNE**, here, where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
26. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested and taken to a police station.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
27. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, seize illegally and search the Plaintiff commit an assault/batteries to her person, and/or deny her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the

inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **KENNETH WHITE**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A EIGHT CAUSE OF ACTION

29. Plaintiff **KENNETH WHITE** repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "28" with full force and effect as though set forth at length herein.
30. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, jointly and severally did place Plaintiff **KENNETH WHITE** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff, **KENNETH WHITE** in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A NINTH CAUSE OF ACTION

31. Plaintiff, **KENNETH WHITE**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "30" with full force and effect as though set forth at length herein.
32. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, **KENNETH WHITE**, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx and there did not charge Plaintiff with any crimes even though he was held in custody over the course of approximately six (6) hours until he was released. The Defendants intentionally confined the Plaintiff, **KENNETH WHITE**, without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A TENTH CAUSE OF ACTION

33. Plaintiff, **KENNETH WHITE**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "32" with full force and effect as though set forth at length herein.

34. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, **KENNETH WHITE**, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately six (6) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A ELEVENTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

35. Plaintiff, **KENNETH WHITE**, incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "34" with full force and effect as though set forth at length herein.
36. Defendants **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION**

AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

37. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
38. Plaintiff, **KENNETH WHITE**, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
39. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
40. On or about July 15, 2016, the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, armed police, while effectuating the seizure of the Plaintiff, **KENNETH WHITE**, did search, seize, assault and commit a batteries including being handcuffed and grabbed without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and rear handcuffed and taken to the 42nd PCT when he was held in custody for

multiple hours. Smoke was introduced into the apartment by the police. The police ransacked, trashed and caused damage to many items in the apartment. To wit, doors, walls and personal property of the occupants of the apartment. Further, a robot/droid/mechanical device with a camera was introduced into the apartment. Plaintiff sought medical treatment at the San Juan Clinic and Montefiore Hospital for his epilepsy which was exacerbated by the stress of Plaintiff's arrest.

41. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
 - a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process;
 - f. Freedom from unlawful imprisonment;
 - g. Freedom from loss of his liberty.
42. The Defendants subjected the Plaintiff, **KENNETH WHITE**, to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
43. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A TWELFTH CAUSE OF ACTION

44. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "43" with full force and effect as though set forth at length herein.
45. Defendant **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause, and if probable cause is lacking a plaintiff such as here, should not be taken in handcuffs from his home to a police station and held against his will.
46. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff, **KENNETH WHITE**, here, where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
47. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested and taken to a police station.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. Police cannot enter a residence without a legal right to do so nor can they search or arrest individuals without probable cause to do so.
48. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, seize illegally and search the Plaintiff commit an assault/batteries to her person, and/or deny her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A THIRTNTH CAUSE OF ACTION

49. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **NAOMI FIGUEROA**, in an excessive manner about her person, causing her physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A FOURTEENTH CAUSE OF ACTION

50. Plaintiff **NAOMI FIGUEROA** repeats, reiterates and re-alleges all of

the allegations contained in Paragraphs "1" through "49" with full force and effect as though set forth at length herein.

51. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, jointly and severally did place Plaintiff **NAOMI FIGUEROA** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff, **NAOMI FIGUEROA** in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A FIFTEENTH CAUSE OF ACTION

52. Plaintiff, **NAOMI FIGUEROA**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "51" with full force and effect as though set forth at length herein.
53. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-**

X, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, **NAOMI FIGUEROA**, restrained her and her liberty and then took her into custody to a police station in the County of the Bronx where Plaintiff was held for a few hours and released without being charged. The Plaintiff was thereafter held in custody over the course of approximately six (6) hours until she was released. The Defendants intentionally confined the Plaintiff, **NAOMI FIGUEROA**, without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A SIXTEENTH CAUSE OF ACTION

54. Plaintiff, **NAOMI FIGUEROA**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "53" with full force and effect as though set forth at length herein.
55. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-** X, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, **NAOMI FIGUEROA**, restrained her and her liberty and then took her into custody and causing her to be incarcerated as a detainee in the

City of New York's police jail. The Plaintiff was thereafter held in custody over the course of approximately six (6) hours before she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

56. Plaintiff, **NAOMI FIGUEROA**, incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "55" with full force and effect as though set forth at length herein.
57. Defendants **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
58. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
59. Plaintiff, **NAOMI FIGUEROA**, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York

and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

60. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
61. On or about July 15, 2016, the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, armed police, while effectuating the seizure of the Plaintiff, **NAOMI FIGUEROA**, did search, seize, assault and commit a batteries including being handcuffed and grabbed without a court authorized arrest or search warrant upon the person of the plaintiff. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned without the Defendants possessing probable cause or a legal privilege to do so. Plaintiff was subjected to a smoke bomb being thrown into her apartment. Further, a robot/droid mechanical device also entered her apartment. Then police officers came in through the windows as well as other police officers who came in through the front door. The Plaintiff was searched seized and then handcuffed shortly after the police ordered them out of the apartment into the hallway. Plaintiff Figueroa was rear handcuffed. At approximately 2:00 A.M. on July 16, 2016 at the 42nd PCT, Plaintiff was told to go home and she was free to go with no charges being placed against her. The police ransacked the apartment destroying

and/or damaging doors, walls, windows and personal property of the occupants of the apartment.

62. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from assault to her person;
- b. Freedom from battery to her person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process;
- f. Freedom from unlawful imprisonment;
- g. Freedom from loss of her liberty.

63. The Defendants subjected the Plaintiff, **NAOMI FIGUEROA**, to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

64. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION

65. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "64" with full force and effect as though set forth at length herein.

66. Defendant **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and

seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause, and if probable cause is lacking a plaintiff such as here, should not be taken in handcuffs from her home to a police station and held against her will.

67. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff, **NAOMI FIGUEROA**, here, where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
68. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested and taken to a police station.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. Police cannot search her property, seize, arrest an individual without legally proper warrant.

69. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, seize illegally and search the Plaintiff commit an assault/batteries to her person, and/or deny her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A NINETEENTH CAUSE OF ACTION

70. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **T.C.**, by **his natural mother and legal guardian TALEPMA COLBOURNE**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A TWENTIETH CAUSE OF ACTION

71. Plaintiff **T.C.**, by **his natural mother and legal guardian TALEPMA COLBOURNE** repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "70" with full force and effect as though set forth at length herein.
72. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND**

DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X, jointly and severally did place Plaintiff T.C., by his natural mother and legal guardian TALEPMA COLBOURNE in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff, T.C., by his natural mother and legal guardian TALEPMA COLBOURNE in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A TWENTY-SECOND CAUSE OF ACTION

73. Plaintiff, T.C., by his natural mother and legal guardian TALEPMA COLBOURNE, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "72" with full force and effect as though set forth at length herein.
74. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff,

T.C., by his natural mother and legal guardian TALEPMA COLBOURNE, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx. The Plaintiff was thereafter held in custody over the course of approximately six (6) hours until he was released. The Defendants intentionally confined the Plaintiff, T.C., by his natural mother and legal guardian TALEPMA COLBOURNE, without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A TWENTY-THIRD CAUSE OF ACTION

75. Plaintiff, T.C., by his natural mother and legal guardian TALEPMA COLBOURNE, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "74" with full force and effect as though set forth at length herein.
76. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, T.C., by his natural mother and legal guardian TALEPMA COLBOURNE, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New

York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately six (6) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

77. Plaintiff, T.C., by his natural mother and legal guardian TALEPMA COLBOURNE, incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "76" with full force and effect as though set forth at length herein.
78. Defendants CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
79. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
80. Plaintiff, T.C., by his natural mother and legal guardian TALEPMA COLBOURNE, is and at all times relevant herein, a citizen of the United

States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

81. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
82. On or about July 15, 2016, the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, armed police, while effectuating the seizure of the Plaintiff, T.C., by his natural mother and legal guardian **TALEPMA COLBOURNE**, did search, seize, assault and commit a batteries including being handcuffed and grabbed without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and in his apartment and self were subjected to smoke coming into the apartment, a robot (droid) was thrown into the apartment armed police who pointed firearms at the Plaintiff. He was searched, handcuffed without a warrant and brought to the 42nd PCT. While handcuffed, he was first brought from the apartment to a van where he remained for two (2) hours in a van with his parents and brothers who were also handcuffed. After the two (2) hours in the van, he was back to the 42nd PCT in the Bronx for approximately three (3) hours.

83. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process;
 - f. Freedom from unlawful imprisonment;
 - g. Freedom from loss of his liberty.
84. The Defendants subjected the Plaintiff, **T.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
85. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION

86. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "85" with full force and effect as though set forth at length herein.
87. Defendant **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court

authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause, and if probable cause is lacking a plaintiff such as here, should not be taken in handcuffs from his home to a police station and held against his will.

88. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff, T.C., by his natural mother and legal guardian **TALEPMA COLBOURNE**, here, where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
89. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested and taken to a police station.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
90. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely

arrest, seize illegally and search the Plaintiff commit an assault/batteries to his person, and/or deny him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION

91. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff V.C., by his natural mother and legal guardian TALEPMA COLBOURNE, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A TWENTY-SEVENTH CAUSE OF ACTION

92. Plaintiff V.C., by his natural mother and legal guardian TALEPMA COLBOURNE repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "91" with full force and effect as though set forth at length herein.
93. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE

NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X, jointly and severally did place Plaintiff V.C., by his natural mother and legal guardian TALEPMA COLBOURNE in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff, V.C., by his natural mother and legal guardian TALEPMA COLBOURNE in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A TWENTY-EIGHT CAUSE OF ACTION

94. Plaintiff, V.C., by his natural mother and legal guardian TALEPMA COLBOURNE, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "93" with full force and effect as though set forth at length herein.
95. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, V.C., by his natural mother and legal guardian TALEPMA COLBOURNE, restrained him and his liberty and then took him into custody to a police

station in the County of the Bronx. The Plaintiff was thereafter held in custody over the course of approximately six (6) hours until he was released. The Defendants intentionally confined the Plaintiff, **V.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A TWENTY-NINTH CAUSE OF ACTION

96. Plaintiff, **V.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "95" with full force and effect as though set forth at length herein.
97. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, **V.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately six (6) hours before he was released. The

Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A THIRTIETH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

98. Plaintiff, V.C., by his natural mother and legal guardian TALEPMA COLBOURNE, incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "97" with full force and effect as though set forth at length herein.
99. Defendants CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
100. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
101. Plaintiff, V.C., by his natural mother and legal guardian TALEPMA COLBOURNE, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings

this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

102. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
103. On or about July 15, 2016, the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, armed police, while effectuating the seizure of the Plaintiff, **V.C.**, by his natural mother and legal guardian **TALEPMA COLBOURNE**, did search, seize, assault and commit a batteries including being handcuffed and grabbed without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and his apartment and self were subjected to smoke coming into the apartment, a robot (droid) was thrown into the apartment armed police who pointed firearms at the Plaintiff. He was searched, handcuffed without a warrant and brought to the 42nd PCT. While handcuffed, he was first brought from the apartment to a van where he remained for two (2) hours in a van with his parents and brothers who were also handcuffed. After the two (2) hours in the van, he was back to the 42nd PCT in the Bronx for approximately three (3) hours.
104. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process;
- f. Freedom from unlawful imprisonment;
- g. Freedom from loss of his liberty.

105. The Defendants subjected the Plaintiff, **V.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
106. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A THIRTY-FIRST CAUSE OF ACTION

107. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "106" with full force and effect as though set forth at length herein.
108. Defendant **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers

should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause, and if probable cause is lacking a plaintiff such as here, should not be taken in handcuffs from his home to a police station and held against his will.

109. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff, V.C., by his natural mother and legal guardian **TALEPMA COLBOURNE**, here, where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

110. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested and taken to a police station.
2. Excessive force cannot be used against an individual who does not physically resist arrest.

111. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, seize illegally and search the Plaintiff commit an assault/batteries to his person, and/or deny him prompt medical attention under the belief that

they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A THIRTY-SECOND CAUSE OF ACTION

112. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff Z.C., by his natural mother and legal guardian TALEPMA COLBOURNE, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A THIRTY-THIRD CAUSE OF ACTION

113. Plaintiff Z.C., by his natural mother and legal guardian TALEPMA COLBOURNE repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "112" with full force and effect as though set forth at length herein.
114. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X, jointly and severally did place Plaintiff Z.C., by his natural mother and

legal guardian TALEPMA COLBOURNE in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff, **Z.C., by his natural mother and legal guardian TALEPMA COLBOURNE** in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRTY-FOURTH CAUSE OF ACTION

115. Plaintiff, **Z.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "114" with full force and effect as though set forth at length herein.
116. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, **Z.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx. The Plaintiff was thereafter held in custody over the course of approximately six (6) hours until he was released.

The Defendants intentionally confined the Plaintiff, **Z.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A THIRTY-FIFTH CAUSE OF ACTION

117. Plaintiff, **Z.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "116" with full force and effect as though set forth at length herein.
118. On or about July 15, 2016, at approximately 8:00 P.M. in the vicinity of the inside of 993 Union Avenue, Apt. 19, County of Bronx, State of New York the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, **Z.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately six (6) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the

confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A THIRTY-SIXTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

119. Plaintiff, **Z.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "118" with full force and effect as though set forth at length herein.
120. Defendants **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
121. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
122. Plaintiff, **Z.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

123. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
124. On or about July 15, 2016, the Defendants, **CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-X**, armed police, while effectuating the seizure of the Plaintiff, **Z.C.**, by his natural mother and legal guardian **TALEPMA COLBOURNE**, did search, seize, assault and commit a batteries including being handcuffed and grabbed without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and his apartment and self were subjected to smoke coming into the apartment, a robot (droid) was thrown into the apartment armed police who pointed firearms at the Plaintiff. He was searched, handcuffed without a warrant and brought to the 42nd PCT. While handcuffed, he was first brought from the apartment to a van where he remained for two (2) hours in a van with his parents and brothers who were also handcuffed. After the two (2) hours in the van, he was back to the 42nd PCT in the Bronx for approximately three (3) hours.
125. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;

- c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process;
 - f. Freedom from unlawful imprisonment;
 - g. Freedom from loss of his liberty.
126. The Defendants subjected the Plaintiff, **Z.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
127. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A THIRTY-SEVENTH CAUSE OF ACTION

128. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "127" with full force and effect as though set forth at length herein.
129. Defendant **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause, and if probable cause is lacking a plaintiff such

as here, should not be taken in handcuffs from his home to a police station and held against his will.

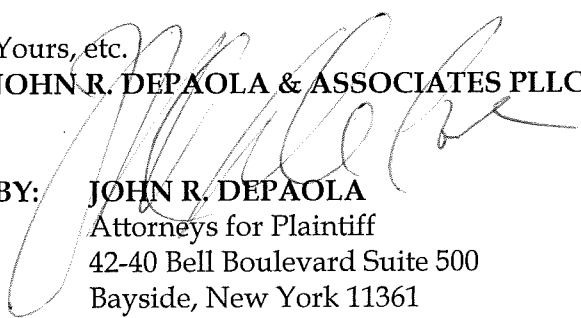
130. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff, **Z.C., by his natural mother and legal guardian TALEPMA COLBOURNE**, here, where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
131. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested and taken to a police station.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
132. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, seize illegally and search the Plaintiff commit an assault/batteries to his person, and/or deny him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

WHEREFORE, Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
October 3, 2017

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC


BY: JOHN R. DEPAOLA
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No. _____

Purchased _____

-----X
TALEPMA COLBOURNE, KENNETH WHITE,
NAOMI FIGUEROA, T.C., by his natural mother and
legal guardian, TALEPMA COLBOURNE, V.C., by
his natural mother and legal guardian, TALEPMA
COLBOURNE, and Z.C., by his natural mother and
legal guardian, TALEPMA COLBOURNE,

VERIFICATION

Plaintiffs,

-against-

THE CITY OF NEW YORK, CITY OF NEW YORK
POLICE OFFICERS AND DETECTIVES WHOM
ENTERED CLAIMANTS' APARTMENT AT 993
UNION AVENUE, BRONX, NEW YORK ON JULY
15, 2016 WHOSE NAMES ARE NOT KNOWN AT
THIS TIME N/H/A JOHN/JANE DOE I-X, AS IT
PERTAINS TO THE INCIDENT THAT AROSE ON
JULY 15, 2016,

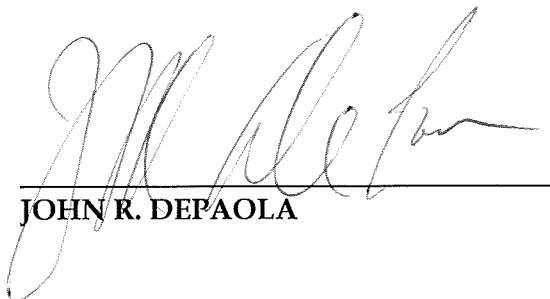
Defendants.

-----X

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
October 3, 2017



JOHN R. DEPAOLA

Index No. :

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

TALEPMA COLBOURNE, KENNETH WHITE, NAOMI FIGUEROA, T.C., by his natural mother and legal guardian, TALEPMA COLBOURNE, V.C., by his natural mother and legal guardian, TALEPMA COLBOURNE, and Z.C., by his natural mother and legal guardian, TALEPMA COLBOURNE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, CITY OF NEW YORK POLICE OFFICERS AND DETECTIVES WHOM ENTERED CLAIMANTS' APARTMENT AT 993 UNION AVENUE, BRONX, NEW YORK ON JULY 15, 2016 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANEDOEI-X, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON JULY 15, 2016,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated _____

Attorney(s) for